

Severing the Power Switch: An American Legislative Strategy for the Tech Barons

1. Executive summary

The American response to private power has usually been neither confiscation nor laissez-faire. When a private actor controls a bottleneck through which public life must pass, Congress, courts, and administrative agencies have repeatedly altered the architecture of control: separate business lines, divest a vertical link, prohibit discriminatory access, simplify a holding company, open an interface, or place rates and conduct under public supervision. The object is not to make the proprietor poor. It is to make the proprietor unable to exercise sovereign-like control through a privately owned switch.

Rockefeller remains the archetype. The Supreme Court applied the Sherman Act to dissolve Standard Oil into 34 companies, yet Rockefeller retained his shares and became richer as the successor securities appreciated; the state attacked integrated control, not the fortune ([Library of Congress; *Standard Oil Co. v. United States*](#)). The same design recurs in railroad rate regulation, separation of commercial from investment banking, dismantling utility pyramids, the Paramount theater divestitures, AT&T's breakup, IBM's licensing and unbundling obligations, and Microsoft's interoperability decree.

Today's equivalent power is layered: cloud, frontier-model compute, AI accelerators, operating systems and app stores, search and advertising exchanges, social graphs, identity, payments, and satellite connectivity. In Q3 2025 AWS, Azure, and Google Cloud accounted for 63% of global cloud-infrastructure spending ([Omdia](#)). The strategic response should therefore be cumulative, not a single "breakup": structural separation of commerce from infrastructure; common-carrier duties for critical cloud and satellite services; portability and mandatory APIs; PUHCA-style cross-line limits; acquisition presumptions; frontier-model licensing and incident disclosure; federal multi-cloud procurement; public research compute; egress and app-store rate rules; and a Digital Platforms Commission with structural-remedy authority. Wealth remains private. The power to exclude, discriminate, surveil, bundle, or disable becomes legally bounded.

2. The "over-mighty subject" tradition

"Over-mighty subject" is older than Coke: Sir John Fortescue warned in *The Governance of England* (c. 1471–75) of the danger to a king from "ovur mighty subgiettes," meaning magnates whose retainers and resources rivaled royal capacity ([Ohio State historical study](#)). Coke belongs in the lineage not as phrase-maker but as a jurist of bounded prerogative: his seventeenth-century arguments denied that the monarch could personally exercise judicial power ([constitutional-history study of Coke](#)). Bagehot later described the constitution as an allocation between the "dignified" and "efficient" parts and emphasized parliamentary government's capacity to concentrate legitimate, accountable action ([Bagehot, *The English Constitution*](#)).

In the United States, James Willard Hurst's institutional history shifted attention from formal rights to how law constituted economic power—corporations, markets, administrative capacity—and how public authority could channel private energy without abolishing it ([Michigan Law Review assessment of Hurst](#)). That frame is more useful than a morality play about billionaires: the relevant variable is command over institutional chokepoints.

The American translation is republican and statutory. Congress defines prohibited combinations or incompatible lines; agencies supervise networks; courts order divestiture or police decrees. Wealth taxation, eminent-domain acquisition, and public ownership exist, but the characteristic response to concentrated *industrial power* has been structural or behavioral regulation. This is a preference, not an absolute constitutional rule—and sometimes remedies were too weak—but it explains why the operative question is “what power must be severed?” rather than “how much money may this person keep?”

3. Historical case studies — the American legislative pattern

3.1 Standard Oil and Rockefeller

Standard Oil converted scale into control over refining, transport rebates, pipelines, marketing, and rivals. Congress's instrument was the Sherman Antitrust Act of 1890, 15 U.S.C. §§1–2; the Supreme Court held in 1911 that the combination unreasonably restrained and monopolized interstate petroleum commerce and ordered dissolution ([Standard Oil Co. v. United States](#)). The decree distributed the constituent corporations among shareholders rather than transferring them to the Treasury. Standard Oil became 34 independent companies ([Library of Congress](#)).

The mechanism was structural: replace a unified command center with separately governed enterprises, removing the ability to coordinate exclusion across a vertically integrated system. The remedy did not confiscate Rockefeller's securities. He retained proportional interests in the successor companies; their appreciation helped make him the first widely reported billionaire by 1916 ([Library of Congress](#)). The paradox proves the thesis: personal wealth can rise while private governing capacity falls. The “power switch” was Rockefeller's integrated control of an industry, not the market value of his property.

3.2 The railroads

Nineteenth-century railroad owners could decide which towns, shippers, and commodities received favorable access. Congress responded with the Interstate Commerce Act of 1887, creating the Interstate Commerce Commission and prohibiting unreasonable and discriminatory rates; the Hepburn Act of 1906 strengthened the ICC's power to set maximum rates and inspect accounts ([U.S. Senate history](#); [National Archives](#)).

This was not a breakup. It converted private tariff discretion into an administratively reviewable public function. Rail shares and fortunes remained private; the carrier lost the unilateral power to favor an affiliate or punish a dependent shipper. The ICC therefore supplies the cleanest analogue for cloud egress, app-store commissions, and nondiscrimination: leave title intact, regulate the essential-network switch.

3.3 The Money Trust and J.P. Morgan

The 1912–13 Pujo Committee documented a dense network of banker influence through underwriting, credit relationships, and interlocking directorships. Congress answered with an institutional package: the Federal Reserve Act of 1913 established a public-law central-banking system; the Clayton Act of 1914 constrained interlocking directorates and specified anticompetitive practices; and the FTC Act of 1914 created an expert commission to police unfair methods of competition ([Federal Reserve history](#); [DOJ history of the Clayton Act](#)).

The mechanism was distributed. Liquidity and monetary coordination ceased to depend on an informal banker's syndicate; Section 8 attacked shared governance across competitors; an administrative body gained continuing jurisdiction. Morgan partners kept their capital and banking businesses. What they lost was the quasi-public capacity to coordinate corporate America through overlapping boards and privately rationed credit. The modern lesson is that one need not prove a single illegal merger to break a network of control: governance links and public-function substitution can be regulated directly.

3.4 Glass–Steagall and later bank firebreaks

The Banking Act of 1933 separated Federal Reserve member commercial banking from much securities underwriting and dealing, creating a line-of-business firebreak between deposits and investment banking ([Federal Reserve History](#); [Congressional Research Service](#)). Bank owners were not dispossessed; institutions chose sides, reorganized, or divested incompatible operations. The switch removed was the universal bank's ability to combine government-supported deposits, lending relationships, securities promotion, and speculative risk under one roof.

The pattern continued, with changed boundaries, in the Bank Holding Company Act of 1956's controls on banking and nonbanking affiliations, Riegle–Neal's 1994 nationally uniform interstate branching framework ([Riegle–Neal, Pub. L. 103-328](#)), analyst “Chinese wall” rules, Sarbanes–Oxley's 2002 audit and governance mandates, and Dodd–Frank's Volcker Rule restricting proprietary trading by banking entities ([Federal Reserve Volcker Rule materials](#); [SEC Dodd–Frank implementation](#)). These measures vary from structural to behavioral, but all constrain combinations of functions while leaving equity privately owned.

3.5 Utility holding companies and Samuel Insull

Insull's utility empire exemplified pyramided control: a small equity stake at the apex could command layers of operating companies, with opaque intra-group transactions and geographically scattered assets. Title I of the Public Utility Act of 1935—PUHCA—gave the SEC registration and reorganization authority. Its “death sentence” policy required holding systems to simplify and confine themselves to integrated, economically coherent utility systems ([SEC text and historical notes](#)).

The SEC could compel divestitures and collapse holding-company tiers. It did not socialize electricity or wipe out all investors; operating utilities remained largely investor-owned under public-utility regulation. The severed switch was leveraged pyramidal command, not wealth itself. PUHCA is consequently the strongest template for a conglomerate that spans cloud,

models, applications, devices, advertising, identity, and payments: prohibit control architectures whose strategic logic is cross-layer preference rather than operational necessity.

3.6 Meatpackers

By 1920 the “Big Five”—Swift, Armour, Morris, Cudahy, and Wilson—used slaughtering scale, stockyard interests, refrigeration, distribution, and retail adjacencies to extend power beyond meatpacking. A federal consent decree forced withdrawal from specified adjacent businesses; the Packers and Stockyards Act of 1921 then imposed fair-practice, nondiscrimination, and oversight duties on packers, stockyards, and dealers ([DOJ’s *Swift* final judgment](#); [USDA statutory text](#)).

The combined remedy mixed line-of-business exclusion with sector regulation. The firms and owners kept meatpacking assets and capital; they lost control of gateways that could foreclose producers and merchants. It is a direct analogue to barring a platform operator from using infrastructure control to enter and privilege every dependent market.

3.7 The Radio Trust / RCA

RCA joined radio patents, equipment manufacturing, and communications through relationships with GE, Westinghouse, and AT&T. The 1932 antitrust consent decree required GE and Westinghouse to divest their RCA holdings and constrained patent and commercial arrangements ([DOJ final judgment](#)). The remedy separated ownership and weakened a patent pool’s capacity to coordinate an emerging medium. Shareholders received value rather than expropriation; the targeted switch was cross-ownership plus exclusive intellectual-property control.

3.8 Paramount and the Hollywood studios

The major studios integrated production, distribution, and first-run theaters, using block booking and circuit power to control access to audiences. In 1948 the Supreme Court sustained core antitrust findings in *United States v. Paramount Pictures* ([334 U.S. 131](#)). Subsequent decrees required theater divestiture by vertically integrated defendants and constrained licensing practices ([DOJ Paramount Decrees review](#)).

The studios retained films, brands, production capital, and distribution businesses; theater assets were sold, not seized. The power switch was the ability of a content producer-distributor to own the scarce exhibition gateway and discriminate against independent content. This is the canonical analogue for separating app-store operation from first-party apps, or retail marketplaces from their infrastructure and house brands.

3.9 Alcoa and DuPont–GM

Judge Hand’s 1945 *Alcoa* opinion treated durable control of primary aluminum capacity as monopolization even without a theatrical predatory act, making market structure central to Section 2 analysis ([United States v. Alcoa](#)). Later proceedings considered structural relief but adopted more limited remedies as entry changed conditions ([1957 district-court opinion](#)).

In the DuPont–GM matter, the Supreme Court found DuPont’s large GM shareholding unlawful under Clayton Act §7 because the stock relationship affected GM’s purchases; divestiture was ultimately required (*United States v. E.I. du Pont de Nemours*). DuPont’s productive assets and owners’ residual wealth remained private. The switch was a strategic equity link that converted ownership into preferred access to a captive buyer—an analogue for cloud/model cross-investments and platform stakes in dependent firms.

3.10 AT&T

The 1956 Bell System consent decree confined AT&T largely to regulated communications and government work and required broad patent licensing, limiting its ability to carry Bell Labs’ inventions into general-purpose computing. In 1982 the Modified Final Judgment, approved and supervised by Judge Harold Greene, required AT&T to divest local exchange carriers; the 1984 reorganization created seven Regional Bell Operating Companies (Judge Greene’s opinion; DOJ decree materials).

AT&T shareholders received interests reflecting the separated businesses; the government did not confiscate Bell wealth. Structural separation prevented the monopoly local network from favoring AT&T’s long-distance and equipment operations. The named-judge decree also shows the value—and administrative burden—of continuing judicial supervision. For cloud and AI, AT&T supplies both remedies: restrict a regulated bottleneck from adjacent markets, then divest if conduct rules cannot neutralize self-preference.

3.11 IBM

The 1956 IBM consent decree required patent licensing and changed practices around tabulating machines, including sale as well as lease options; later modification proceedings preserve the decree’s scope and rationale (DOJ memorandum on modifying the 1956 judgment). DOJ’s 1969 monopolization case lasted until dismissal in 1982 as “without merit,” but IBM separately announced in 1969 that software and services would be priced apart from hardware (DOJ memorandum on the 1969 case).

Causation should not be overstated: unbundling reflected litigation pressure, customer demand, and technological change. Yet it converted software from an included complement into a contestable product, helping create an independent software industry and space in which firms such as Microsoft and Intel could grow. IBM’s owners kept the company and fortune; the switch constrained tying, closed interfaces, and patent leverage.

3.12 Microsoft

The D.C. Circuit sustained the core conclusion that Microsoft illegally maintained its operating-system monopoly, while vacating the initial breakup order and remanding remedy questions. The 2001 settlement and 2002 final judgment imposed behavioral obligations: OEM freedom regarding middleware, disclosure of communications protocols, and restrictions on retaliation and exclusive dealing (DOJ settlement announcement; competitive-impact statement).

Microsoft remained intact and its shareholders retained their wealth. The remedy opened APIs and distribution choices rather than divesting Windows. It is too strong to say the decree alone

“made the modern web possible”; the browser and web already existed. It is sound to say the litigation checked foreclosure at a decisive platform layer and institutionalized interoperability as an antitrust remedy. This is the closest operational precedent for mandatory cloud, app-store, identity, and social-graph APIs.

4. Cross-case synthesis: the American legislative toolkit

Across these cases, the recurring object is control of a dependency. The instruments differ according to whether the dependency is organizational, technical, financial, or infrastructural:

- **Structural separation and line-of-business restrictions** isolate a bottleneck from businesses that depend on it: Glass–Steagall, Paramount, AT&T.
- **Vertical divestiture and forced spin-offs** remove the incentive and ability to self-preference: Standard Oil, Paramount, DuPont–GM.
- **Interoperability, unbundling, licensing, and mandatory access** turn a proprietary interface into a contestable boundary: IBM, Microsoft, AT&T, and the Telecommunications Act of 1996’s unbundled-network framework ([FCC implementation history](#)).
- **Interlocking-directorate and cross-ownership bans** prevent coordination without waiting for an explicit cartel. DOJ’s renewed Clayton §8 enforcement produced multiple director resignations beginning in 2022 ([DOJ](#)).
- **Holding-company simplification** attacks pyramidal control and opaque intra-group subsidy: PUHCA and bank-holding-company regulation.
- **Consent decrees supervised by named federal judges** supply adaptable enforcement—Greene’s AT&T jurisdiction being the model—but can become slow, personality-dependent mini-regulators.
- **Sector-specific independent regulators**—ICC, FCC, SEC, FERC, CFPB—sustain expertise, disclosure, licensing, and rate oversight after litigation ends.
- **Merger review and notification** intervene before power consolidates. Hart–Scott–Rodino 1976 created premerger filing and waiting-period machinery ([FTC](#)).
- **Common carriage, nondiscrimination, and public-utility rate regulation** leave the network privately owned but constrain whom it may exclude and what it may charge.
- **Disclosure mandates** make concealed risk and preference administrable, as securities, audit, bank, and utility law demonstrate.
- **National-security review** treats control itself as a security variable. CFIUS reviews covered foreign investments; the Treasury’s outbound-investment program now regulates specified U.S. investment in sensitive technologies in countries of concern ([Treasury Department](#)). Team Telecom performs parallel security review for FCC-linked foreign participation ([FCC](#)).
- **Procurement leverage** conditions access to the federal customer on interoperability, auditability, labor, cybersecurity, or sourcing rules.

The toolkit’s strength is modularity. A platform may require rate regulation at one layer, nondiscrimination at another, and divestiture at a third. Its discipline is the “power switch” test: identify the precise capacity to exclude, coordinate, surveil, subsidize, or disable; choose

the least administratively fragile remedy that removes that capacity; leave residual ownership and lawful returns intact.

5. The modern problem: the hyperscaler power stack

Modern concentration is not one monopoly but a stack of mutually reinforcing chokepoints. AWS, Azure, and Google Cloud supplied 63% of worldwide cloud-infrastructure spending in Q3 2025, with shares of roughly 29%, 20%, and 13% respectively ([Omdia](#)). The UK cloud investigation identified egress fees, committed-spend discounts, technical barriers, and software-licensing practices as obstacles to switching and multi-cloud use; its provisional findings recommended considering strategic-market-status investigations of AWS and Microsoft under the UK regime ([CMA provisional findings](#)).

Cloud concentration feeds foundation-model concentration because frontier training requires scarce accelerators, networking, power, data centers, and capital ([NBER research on AI scaling and market structure](#)). Nvidia is the critical accelerator and software-ecosystem supplier; fabrication of leading chips depends heavily on TSMC and an internationally concentrated semiconductor supply chain ([Congressional Research Service on Taiwan's semiconductor role](#)). The security concern is thus dual: corporate gatekeeping inside the United States and geographic manufacturing dependency abroad.

Apple and Google control mobile operating systems, app distribution, in-app payment rules, identity credentials, and browser defaults. The EU Digital Markets Act imposes ex ante duties on designated gatekeepers, including anti-steering, data-use, interoperability, and self-preference constraints ([European Commission DMA overview](#)). Google joins default search distribution to an advertising stack; Meta controls large social graphs and identity signals; Amazon joins marketplace rules, fulfillment, advertising, retail data, and AWS. The DOJ has obtained liability judgments against Google in search and ad-tech cases, although remedies and appeals determine how much control is actually severed ([DOJ Google search case](#); [DOJ Google ad-tech case](#)).

Musk's cluster adds a different vertical chain: Starlink satellite connectivity, SpaceX launch, X's communications graph, and xAI models and compute. Starlink's military and emergency value makes continuity, priority, and denial decisions matters of state capacity rather than ordinary consumer contracting. Across the stack, payment rails and federated login determine who can transact or authenticate; data and telemetry train models and target advertising. The switch is therefore not "being rich" or even "being large." It is possessing unilateral, technically embedded discretion over access to essential digital functions.

6. A barrage of proposed measures — the modern menu

Structural architecture

1. **Spin off AWS from Amazon commerce.** Separate cloud hosting from Amazon's marketplace, retail, logistics, and advertising group, with transitional service agreements and a ban on discriminatory data exchange. *Analogue:* Paramount and AT&T. *Target:* the capacity to cross-subsidize commerce with infrastructure rents or privilege dependent sellers and cloud customers.

2. **Separate Google's ad exchange and publisher tools.** Require divestiture sufficient to prevent one firm from representing buyers, sellers, and the exchange; DOJ's ad-tech complaint expressly sought divestiture, and the liability case is the foundation for structural relief ([DOJ ad-tech case](#)). *Analogue:* Paramount and meatpackers. *Target:* vertically integrated ad-auction control.
3. **App-store/first-party-app separation.** Bar Apple and Google from operating the sole store while competing through first-party apps and payment services; permit separately capitalized affiliates only with independent governance. *Analogue:* Paramount. *Target:* rankings, fees, review delay, and access rules used against dependent developers.
4. **Cloud/model functional separation.** Require a dominant cloud's foundation-model developer to transact through published, auditable terms available to rival labs, escalating to ownership separation if nondiscrimination fails. *Analogue:* AT&T's network/adjacent-market separation. *Target:* preferential accelerator allocation, credits, and distribution.
5. **PUHCA-style digital holding-company law.** Limit common control across cloud, frontier models, operating systems, app stores, digital advertising, identity, and payments unless the regulator finds an operational integration benefit that cannot be achieved by contract. *Analogue:* PUHCA's simplification mandate. *Target:* pyramidal cross-layer command.
6. **Cross-ownership and directorate firewall.** Apply Clayton §8 aggressively to platform, model, chip, and cloud competitors; extend statutory coverage to noncorporate entities and board-observer rights. DOJ's 2022 campaign shows resignations can be obtained without waiting for a merger challenge ([DOJ](#)). *Analogue:* Money Trust. *Target:* coordination through governance and strategic minority stakes.

Common carriage, rates, and access

7. **Critical-cloud common carriage.** Designate providers above a market-share and federal-critical-workload threshold as common carriers for specified essential services, with nondiscrimination, notice, continuity, and appeal duties. *Analogue:* ICC rail regulation. *Target:* arbitrary denial or degradation of compute, storage, and network access.
8. **Cloud egress and portability tariff.** Cap egress charges at cost-oriented levels for designated providers and require standardized migration estimates and machine-readable bills. The CMA identified egress and switching barriers as competition concerns ([UK CMA](#)). *Analogue:* Hepburn rate regulation. *Target:* exit tolls and lock-in.
9. **App-store nondiscrimination and commission ceiling.** Require equal review, ranking, API, and payment access and authorize a regulator to cap commissions for gatekeepers while preserving a cost-based security fee. *Analogue:* Packers and Stockyards Act plus ICC rates. *Target:* gatekeeper rent and retaliation.
10. **Search-neutrality code.** Prohibit a designated general-search engine from favoring affiliated verticals except under transparent relevance criteria; require labeled house results and audit logs. *Analogue:* railroad nondiscrimination. *Target:* traffic allocation to dependent publishers and services.
11. **Starlink continuity carrier.** Condition spectrum authority, federal launch support, and defense contracts on continuity, lawful priority, emergency roaming, and a documented government escalation process; provide compensation for compelled extraordinary

service. *Analogue*: common carriage and defense procurement. *Target*: a private operator's unilateral capacity to interrupt strategically essential connectivity.

Interoperability, data, and technical openness

12. **Mandatory platform APIs.** A Digital Platforms Commission should specify stable, secure APIs for app stores, cloud orchestration, identity, messaging, and advertising measurement, with change-control notice. *Analogue*: Microsoft's protocol disclosure. *Target*: closed interfaces used as exclusion tools.
13. **Social-graph portability and federation.** Give users continuous, permissioned export of contacts, follows, group memberships, and content in standardized formats, plus real-time interoperability for designated messaging and social services. *Analogue*: number portability and the proposed ACCESS Act concept. *Target*: Meta/X network-effect lock-in.
14. **Cloud workload portability.** Mandate exportable machine images, identity policies, logs, and managed-database formats; prohibit contractual penalties for multi-cloud architecture. *Analogue*: 1996 telecom unbundling and IBM unbundling. *Target*: technical switching costs.
15. **Ad-tech measurement commons.** Require interoperable auction logs and independent measurement access subject to privacy controls. *Analogue*: regulated-carrier accounting. *Target*: information asymmetry that lets an integrated intermediary mark its own homework.
16. **Frontier-model disclosure, not blanket open weights.** Developers above a statutory compute threshold should file model cards, evaluation methods, serious-incident reports, training-compute bands, and supply-chain dependencies with a secure regulator. Do not automatically publish weights: that can increase proliferation risk. *Analogue*: SEC confidential filings and utility accounts. *Target*: opacity around systemic capability and risk.

Institutions, licensing, and security

17. **Digital Platforms Commission.** Enact the Bennet-Welch proposal's core idea: an expert federal commission with rulemaking, investigation, data-gathering, interoperability, and structural-remedy referral authority ([Bennet-Welch proposal](#); [Brookings analysis](#)). *Analogue*: ICC/FCC/SEC. *Target*: the enforcement gap between episodic antitrust cases.
18. **Frontier-compute licensing.** Require a license for training above a periodically updated compute/capability threshold, conditioned on security, evaluation, incident response, and beneficial-ownership disclosure. Executive Order 14110's reporting framework was rescinded in January 2025, demonstrating the fragility of executive-only governance ([White House rescission](#)). *Analogue*: safety licensing in high-hazard sectors, administered with SEC-style disclosure. *Target*: catastrophic-risk externalities and hidden control of frontier compute.
19. **Pre-deployment red-team dossier.** For models intended for critical infrastructure, defense, mass bio-design, or autonomous cyber operations, require independent testing and regulator-accessible results before release. California vetoed SB 1047 in 2024 but enacted SB 53 in 2025 with frontier-AI transparency and safety-protocol requirements, providing a

state-law baseline ([Newsom veto message](#); [California SB 53](#)). *Analogue*: securities disclosure plus regulated-product preclearance. *Target*: deployment externalities.

20. **Compute-customer due diligence.** Require hyperscale clusters and accelerator clouds to verify customers, detect anomalous aggregation, retain privacy-protective logs, and report prohibited uses under judicially reviewable rules. *Analogue*: bank customer-identification and suspicious-activity systems. *Target*: clandestine frontier training and sanctions evasion.
21. **CFIUS-plus and outbound review.** Expand review to foreign influence over critical cloud, satellite, chip, model, and identity providers, and align it with Treasury's outbound-investment program ([Treasury](#)). *Analogue*: bank ownership and communications-license review. *Target*: foreign control, technology leakage, and coercive dependencies.
22. **Durable AI-export statute.** Congress should replace oscillating executive rules with country-, end-user-, and compute-based controls plus allied licensing. Commerce rescinded the Biden-era AI Diffusion Rule in 2025 and announced a different approach, illustrating policy volatility ([Bureau of Industry and Security](#)). *Analogue*: standing export-control and communications-security regimes. *Target*: diffusion of frontier chips, weights, and cluster capacity.

Competition, procurement, and public capacity

23. **Dominant-platform acquisition presumption.** Presume unlawful acquisitions by a designated gatekeeper of firms in adjacent digital markets unless the buyer proves no material loss of potential competition; require advance notice for all such deals. *Analogue*: HSR plus bank-holding-company prior approval. *Target*: serial acquisition of nascent rivals.
24. **Retrospective divestiture authority.** Authorize the commission and antitrust agencies to seek divestiture of consummated acquisitions under a clear limitations rule. The FTC lost its Meta monopolization case at trial in late 2025 and appealed in January 2026, so Instagram/WhatsApp divestiture is contested, not an accomplished remedy ([FTC appeal](#)). *Analogue*: DuPont–GM. *Target*: acquired social-graph control.
25. **Federal multi-cloud procurement.** Require critical agencies to maintain tested portability and an exit path across at least two providers; prohibit sole-source dependence absent a documented national-security waiver. *Analogue*: government purchasing as industrial discipline. *Target*: state dependence on a single private switch.
26. **Contractor interoperability covenant.** No major federal cloud, AI, productivity, or satellite contract without open export formats, audit rights, software bills of materials, security-by-design, incident reporting, and decree compliance. *Analogue*: regulated-carrier franchise conditions. *Target*: using public money to entrench lock-in.
27. **Public compute option.** Make the National AI Research Resource permanent and scale NSF/DOE compute for universities, public-interest labs, and qualified small firms. The NAI RR pilot already federates federal and private resources for research access ([National Science Foundation](#)). *Analogue*: public central-bank capacity alongside private banks. *Target*: private rationing of research compute.
28. **Talent-mobility statute.** Congress should bar most noncompetes and restrictive repayment provisions for technical workers while protecting trade secrets. The FTC moved in 2025 to

accept vacatur of its nationwide noncompete rule, confirming that durable national policy requires legislation ([FTC](#)). *Analogue*: anti-interlock policy applied to human capital. *Target*: incumbent capture of scarce engineering talent.

29. **Digital systemic-risk filings.** Require annual public and confidential filings on outages, concentration of suppliers, government requests, content-moderation process, algorithmic audits, political-ad targeting, and material model incidents. *Analogue*: SEC periodic reporting and utility reliability filings. *Target*: informational advantage and concealed systemic risk.
30. **Remedy trustees and sunset review.** Structural decrees should appoint technically expert trustees, publish compliance metrics, protect complainants, and undergo five-year review; sunset only after the bottleneck is demonstrably contestable. *Analogue*: Judge Greene's AT&T supervision, improved to reduce judicial micromanagement. *Target*: evasion and remedy decay.

7. Implementation sequencing, 2026–2030

2026–27: use existing authority. DOJ should enforce the Google search final judgment and press administrable divestiture/interoperability relief in ad tech; the FTC should litigate its Amazon marketplace case and pursue its Meta appeal. The Google search judgment entered in December 2025 bars certain exclusive distribution arrangements and requires data and syndication access, but stops short of the government's requested Chrome divestiture; implementation was still underway in August 2026 ([DOJ remedy announcement](#); [DOJ compliance status report](#)). Agencies can also revive Clayton §8 enforcement, tighten federal contract terms, expand NAIRR, police deception and discrimination, and apply existing FCC, export-control, CFIUS, and Team Telecom powers. The FTC's Amazon monopolization matter remains listed as an active federal case ([FTC case docket](#)).

2027–28: legislate institutions and duties. Congress should create the Digital Platforms Commission; designate covered cloud, app-store, search, social, identity, satellite, and frontier-AI services; establish portability, nondiscrimination, licensing, incident-reporting, and acquisition presumptions; and authorize rate and structural remedies. This is also the moment for a permanent NAIRR, talent-mobility law, and stable AI export-control framework.

2028–30: execute structural cases. Following market studies and rulemaking records, pursue separations where conduct remedies have failed—ad-tech layers first, then app-store publishing and cloud/model affiliations, with AWS/commerce separation on a developed record. Coordinate with the EU DMA, whose gatekeeper obligations have applied since 2024 ([European Commission](#)), and the UK strategic-market-status regime, which now permits firm-specific conduct requirements ([UK government guidance](#)). Sequencing matters: portability and procurement create substitutes before divestiture tests them.

8. Counter-arguments and risks

Innovation loss. Integration can lower latency, improve security, and finance research. The answer is not indiscriminate breakup: require the firm to show integration-specific efficiencies, prefer interface rules where they are enforceable, and reserve separation for conflicts that repeated conduct remedies cannot police.

Competition with China. Scale matters in chips, models, and defense. But dependence on one American supplier is itself a strategic vulnerability; redundancy, open interfaces, and public compute increase national resilience. Export controls should protect external advantage while domestic rules prevent private control from becoming unreviewable.

First Amendment. Rules dictating editorial ranking or compelled carriage can burden platform speech. In *Moody v. NetChoice* the Supreme Court held that lower courts had not properly analyzed the facial challenges and emphasized that content-feed curation can be expressive (603 U.S. ____ (2024)). Legislation should therefore target economic discrimination, process, transparency, portability, and nonexpressive infrastructure; any content obligations require narrow tailoring and service-specific analysis.

Capture and ossification. A commission can become a cartel's guardian. Countermeasures are rotating technical staff, public dockets, adversarial participation, inspector-general audits, judicial review, statutory deadlines, whistleblower protection, and periodic congressional reauthorization. Structural remedies often outperform permanent conduct supervision precisely because they reduce the regulator's need to second-guess daily product decisions.

9. Conclusion

The American tradition is not hostility to wealth. It is hostility to private dominion over public dependencies. Rockefeller could remain extraordinarily rich after losing unified control of oil; bankers retained capital after central-banking and board-network reforms; utility, studio, telephone, computer, and software shareholders retained property after lawmakers and courts separated functions or opened interfaces. The line was repeatedly drawn between ownership and sovereignty.

That distinction should govern the hyperscaler era. Cloud, models, chips, app stores, search, social graphs, identity, payments, and satellite networks are now components of state capacity. Their owners may earn exceptional returns. They should not possess unreviewable authority to determine who computes, communicates, transacts, authenticates, advertises, or connects during a crisis.

The modern program is therefore neither a wealth tax dressed as competition policy nor wholesale nationalization. It is a statutory campaign to identify each digital power switch and place it beyond unilateral private command: separation where conflicts are inherent, interoperability where interfaces exclude, common carriage where continuity is essential, disclosure where opacity creates systemic risk, and public capacity where no credible alternative exists. That is the constitutional logic of the over-mighty subject translated into an administrative republic.